

The Coimbatore City Municipal Corporation Water Supply By-Laws, 1990

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The Coimbatore City Municipal Corporation Water Supply By-Laws, 1990

Rule THE-COIMBATORE-CITY-MUNICIPAL-CORPORATION-WATER-SUPPLY-BY-LAWS-1990 of 1990

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The Coimbatore City Municipal Corporation Water Supply By-Laws, 1990

Published vide Notification ROC. No. 38279184IWSLI

SRO No. C-24/90. - The following by-laws framed under section 432 of the Coimbatore City Municipal Corporation Act, 1981 (Tamil Nadu Act

25 of 1981

), published in Part III, Section 2 of Tamil Nadu Government Gazette, dated 21st March 1990 are confirmed by the council in its resolution No. 532, dated the 23rd August 1990. These by-laws are hereby published for general information under section 438(1)(a) and they will take effect after three months from the date of publication.

In accordance with the Coimbatore City Municipal Corporation Act, 1981, under sections 194, 195, 196, 197, 198, 199,

200, 201, 202, 203, 204 and 205 so as to maintain, manage and regulate the present water-supply system, for safe and pollution free water-supply, regulating the house service connections from the main feeder pipe lines, ownership transfer, repair and maintaining them in good and safe condition, for proper water-supply to domestic uses, for the use of non-domestic and any purpose other than drinking uses for the development and proper management of drinking water-supply system, for the purpose of making compulsory saving of drinking water in cistern, for the purpose of supply of water to fire accidents and any other contingencies, etc. for testing, checking, monitoring and regulate water-supply house service connections and other water-supply pipes for other purposes belonging to private and public properties, for stoppage of water-supply of house services and all other connections and for penalising and publishing for the irregularities noted in usage of such connections in these by-laws are framed.

1.

Title.

- This shall be called the Coimbatore City Municipal Corporation Water Supply By-laws, 1990.

2.

Extent of application.

- This applies to all water supplies effected by the Coimbatore Municipal Corporation from sources maintained by the Corporation or by the Tamil Nadu Water Supply and Drainage Board on its behalf.

3.

Definition.

- (i) The "Corporation" means the Municipal Corporation of Coimbatore;

(ii)

"The Tamil Nadu Water-Supply and Drainage Board" means the Board, constituted under the Tamil Nadu Water Supply and Drainage Board Act, 1970 (Tamil Nadu Act 4 of 1971);

(iii)

"domestic connection" means supply of water from the Corporation's water supply distribution mains to dwelling houses.

(1)

Supply of water to recognised schools and colleges are classified under this bye-law.

(2)

Excludes items classified under non-domestic commercial and industrial items as defined below.

(iv)

"non-domestic connection" means supply of water for the purposes other than to dwelling houses.

(1)

When water supplied for 'domestic' purposes is utilised for construction, repairs, etc., the same will be under 'non-domestic'.

(2)

When water supply for domestic purpose is utilised for construction, repairs, the field staff of Corporation shall charge tariff from earlier reading rate into non-domestic tariff. On completion of construction, connection holders shall apply to the Commissioner in writing and obtain written orders for reconversion into domestic, after satisfying the correctness of the use of water for domestic purpose.

(3)

Supply of water to lodging houses, Government, Quasi-Government, private offices, hospitals, dispensaries, club etc., will be classified under this tariff.

(v)

"commercial connection" means supply of water to any building where business or commercial activities are conducted; This includes supply of water to hotels, tea shops, coffee houses, cinema theatres and other business premises.

'Bulk supplies' effected to all establishment, buildings, etc., are also classifiable under this including supplies to railways, defend establishment, multi-storied constructions.

(vi)

"industrial connections" means supply of water to industrial establishment, licensed under Industrial Act or 'Factories Act' including soda factories, ice factories, cottage industries, rice mills, etc.

(1)

All connections not classified under 'domestic', 'non-domestic' and 'commercial' connections are to be classified under

industrial connection.

4.

Eligibility.

- (i) Each building for which property tax is assessed, and whose annual rental value is above Rs. 120 (Rupees one hundred and twenty only) is eligible for a separate connection.

(ii)

Connection shall be given to the owner/ occupier of the building against a written application agreeing to abide by the water supply by-laws.

(iii)

Domestic connection may be given to such occupied tenant who deposits a sum of Rs. 500 (Rupees five hundred only) as special deposit in addition to the normal deposit payable under this by-laws. This special deposit should be paid into the Corporation Treasury at the time of making the application and the challan be enclosed with the application.

(iv)

Connections shall be given only on depositing the centage charges at 10 per cent of the estimated cost of work where the work is executed by the licensed person (by the Corporation) when the work is executed through the Corporation staff.

(v)

In all the above cases, all the arrears of property tax pertaining to the building should have been cleared before applying for water supply connection.

(vi)

The connection shall be sanctioned on an application appended to bylaws available at a cost with the Corporation office.

5.

Rates of water charges.

- The following shall be the rates at which, the water-supply will be made, (i) Domestic-

(a)

Each supply connection shall be eligible for a free allowance of 100 litres per day.

(b)

The consumption water in excess of free allowance shall be charged at Rs. 1.75 paise (Rupee one and paise seventy-five) for every 1,000 (one thousand) litres or part thereof.

(c)

The monthly minimum charge shall be Rs. 10 (Rupees ten only).

(d)

The supply shall be on meter basis.

(ii)

Non-domestic and commercial-

(a)

No free allowance.

(b)

Every 1,000 (one thousand) litres or part thereof shall be charged Rs. 6 (Rupees six only).

(c)

Minimum monthly charges shall be Rs. 40 (Rupees forty only) for each connection.

(d)

The supply shall be only under meter basis.

(iii)

Lorry supply. - The Commissioner of Corporation shall decide the rates at which water be supplied by lorries owned by the Corporation or to lorries or carts brought by the parties.

(1)

The Council of Corporation reserves the right to change or revise or modify the above rates from any date.

(2)

There shall be no remission for non-usage, etc., for three months.

6.

Computed consumption.

- When the reading of the meter cannot be taken, either due to non-working of the meter or due to its loss, charges at rates on average of three previous periods (when meter was working) shall be recovered.

7.

Deposits.

- (i) Rich of water-supply connection holder in the Corporation limit has to remit deposit as below, after the coming into force of this by-laws.

(a)

Rs. 100 (Rupees one hundred) for domestic connections.

(b)

Rs. 600 (Rupees six hundred) for commercial connections and non-domestic connection.

(c)

Rs. 1,000 (Rupees one thousand) for industrial connections.

(ii)

This deposit is repayable to the depositor at the time of permanent disconnection.

(iii)

When the ownership of the property (domestic, non-domestic/ commercial/ industrial) changes, the deposit will also be transferred in the name of new owner on application.

(iv)

The Corporation reserves the right to change or to revise the rates of the above deposits.

(v)

The above deposits shall bear no interest.

8.

Payment of water charges.

- The water charges shall be paid to the Corporation within fifteen days from the date of reading the, meter and recording the same in spot bill-meter card, indicating the amount due.

In respect of Government offices, the charges are payable on receipt of demands, within 15 days.

9.

Disconnection.

- The Commissioner of the Corporation shall be at liberty to cut off water-supply without giving prior notice for the following reasons:-

(i)

For non-payment of water charges within the stipulated time of 15 days.

(ii)

For the non-payment of property tax.

(iii)

For unhygienic maintenance of the supply system so as to endanger the public at large.

(iv)

For not maintaining the meter properly.

(v)

For not replacing the meter, when it is not working.

(vi)

If the water supplied is mis-used, wasted or sold.

(vii)

If mechanical device or hand pump, electrical pump is used to draw water directly from the pipe line.

(viii)

If obstruction is made by any means to the inspection by Corporation employees of meter and pipe lines.

(ix)

If unauthorised extension of pipe line is made.

(x)

For unauthorised alteration of the pipe line.

The Commissioner of Corporation shall not be liable for any damage arising out of such disconnection of the water-supply connection.

10.

Re-connection.

- Re-connection of service connection after coming into force of this by-laws, shall be allowed only-

(i)

on payment of penalty of Rs. 50 (Rupees fifty) on each occasion of disconnection and re-connection;

(ii)

on payment of a deposit as required under this by-laws when there was no deposit for the connection previously;

(iii)

on payment of all arrears of property tax (when disconnection is made on this account).

11.

Exemption.

- Water-supply connections to institutions owned, controlled and managed by Corporation shall be only on tap basis for domestic purposes and at commercial rates on meter basis for non-domestic purposes.

12.

Water-supply to mosques, churches and temples or any other places of worship.

- (i) This shall be only for drinking purposes and shall be regulated as under domestic supply, but without free allowance to compensate for loss in water cess element in property tax.

(ii)

The management of these institutions shall pay all the charges estimated for the installation of supply connection and the water charges.

13.

Regulation of water flow.

- (i) Each water-supply connection be with a separate pipe connection controlled by a "Screw down" ferrule and a stop-cock suitably throttled to regulate the rate of flow, as considered fit by the Commissioner of Corporation.

(ii)

The diameter and character of the service connection, pipes and the number, size and kind of stop-cocks or taps shall in each case can be determined by the Commissioner of the Corporation having regard to the pressure available at the point of off-take in the main, distance of premises to be served from the main and any other relevant facts. In every case, the diameter of the bore in water-main shall be quarter inch ($\frac{1}{4}$) less than that of the service pipe except that in the case of half-an-inch ($\frac{1}{2}$) service pipe the diameter of the bore shall be $\frac{3}{8}$. All the taps in house service shall be of the screw down-type or other approved by the Municipal Corporation Engineer and their size shall not in any case exceed (half-an-inch) ($\frac{1}{2}$).

14.

Temporary connection.

- Temporary connection will not be given as of routine. The Commissioner of the Corporation may permit temporary connection when he is satisfied that there will be a temporary congregation of people, viz., exhibition, circus, religious function, etc., and that there exists no facility to obtain and store supply through tankers.

In such cases, where temporary connection is considered essential by the Commissioner of the Corporation, the charges for the work be estimated and collected along with 10 per cent centage charges.

(i)

The minimum charges shall be Rs.100 (Rupees one hundred only),

(ii)

The supply shall be only on commercial tariff.

(iii)

The maximum period for which the temporary connection can be given is 60 (sixty) days.

15.

Metering of the system.

- (i) All connection shall be metered.

(ii)

Where the existing connection is on tap system, the same should be converted forthwith into metered system. This shall not apply to buildings owned by Corporation.

(iii)

When the meter is supplied by the Corporation a monthly rent of Rs. 5 (Rupees five) shall be collected towards hiring charges.

(iv)

The meter shall be under the lock and key of the owner/ tenant.

(v)

The meter shall be read and recorded at intervals as decided by the Commissioner of the Corporation.

16.

Conditions of supply.

- (i) All tapes, fittings, etc., of water, supply connection shall be so fixed as to afford facility for easy inspection by inspecting authorities of the Corporation. Every house owner or occupier shall afford all facilities for such inspection.

(ii)

No tap of any service connection shall be allowed in such a position as to render it liable to become submerged by water or be in a position where the spill or wash water cannot be discharged by gravitation to the nearest Corporation ditch or drain.

(iii)

Every service connection shall be maintained in good conditions and be repaired, when necessary, at the cost of the consumer.

(iv)

Water from domestic connection shall not be used for non-domestic purpose including for construction or extension or additional construction, etc., without express permission of the Executive Authority.

(v)

No person shall-

(a)

permit or cause to break the seal of the lock on the meter or break the glass on the dial or open the meter or alter the index of any meter or prevent any meter from duly registering the quantity of water supplied, or

(b)

abstract or use water before it has been registered by a meter set up for the purpose of measuring the same, or

(c)

permit or cause the meter to be stolen or be damaged so that the meter may not duly register the quantity of water supplied.

(vi)

The owner or occupier of the premises in which the meter is installed should be held responsible for the proper compliance of these by-laws and such person shall, without prejudice to such action as maybe taken against him for breach of the law, be held responsible to indemnify the Corporation for the cost of the new meter when the meter is fixed by the Corporation.

17.

Power of the Corporation.

- (i) The Corporation reserves to itself the right to exempt any service connection from adherence to provisions of these rules.

(ii)

The Corporation shall, with the concurrence of the Government, have the powers to amend, modify or revise these bye-laws.

(iii)

The Commissioner of the Corporation may, at any time, remove any fitting connected with any service connection for the purpose of examining the condition of it or for repairing such fittings.

(iv)

Notwithstanding anything contained in the bye-laws that may previously be in force on the day the aforesaid by-laws take effect, the Corporation shall have powers to make all service connections granted prior to these by-laws confirm to

the bye-laws as adopted or as amended, from time to time.

(v)

Notwithstanding anything contained in the by-laws, the Corporation reserves the right to supply water either by lorry load or in carts to any one at such rates as maybe fixed by the Commissioner of Corporation, from time to time.

(vi)

All service connections in existence on the date of coming into force of these by-laws shall be recognised valid as though they had been granted under these by-laws and subject to the rates in the by-laws from the date of these bylaws coming into force.

(vii)

The Commissioner of the Corporation may direct that any private latrine, urinal or water closet which is connected for water from Corporation waterworks, shall be provided with a cistern of such size to description and be located in such a position as he may decide.

18.

Special Powers.

- (i) The Commissioner of the Corporation reserves to himself the right to cut all water-supply for domestic or non-domestic, commercial or industrial purposes after giving 24 hours notice, if in his opinion, there is any scarcity of water at the sources or there is any danger to public health.

(ii)

The Commissioner of the Corporation shall have powers to cut off, after giving 24 hours notice to the owner or occupier, any supply of any kind which, in his opinion, is misusing the supply or when any fittings are wilfully or negligently damaged.

(iii)

In case of disconnection, neither the Corporation nor the Commissioner of the Corporation shall be liable for any damage.

19.

Right to appeal.

- Any party aggrieved by the decision of the Commissioner of the Corporation under this by-laws will have a right of appeal to the Council of the Corporation whose decision thereon shall be final and binding.

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